

TENTATIVE RULING

Case: **Mitchell v. Langston**
Case No. CV-2025-3055

Hearing Date: **February 3, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff Frederick Mitchell’s (“plaintiff”) motion for a court order to disregard the false “declaration of demurring or moving party regarding meet and confer” filed on November 24, 2025, under penalty of perjury as to defendant Theresa Langston (“defendant”) and to enter default and default judgment nunc pro tunc to November 25, 2025, and defendant’s demurrer to plaintiff’s complaint are **STAYED**, pursuant to this Court’s inherent authority, pending resolution of plaintiff’s writ of mandate, filed on January 27, 2026, in the Third District Court of Appeal, Case No. C105543. The power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 141, citing *Landis v. North American Co.* (1936) 299 U.S. 248, 254.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: Wells Fargo Bank, N.A. v. Gale
Case No. CV-2025-0214

Hearing Date: February 3, 2026 **Department Fourteen** **9:00 a.m.**

The Court notes that plaintiff Wells Fargo Bank, N.A. failed to properly meet and confer “in person or by telephone, or by video conference ” prior to the filing of this motion for judgment on the pleadings. (Code Civ. Proc., § 439; Agne Decl., ¶¶ 1, 2, Ex. A.) However, the Court may not deny a judgment on the pleadings for failure to meet and confer. (Code Civ. Proc., § 439, subd. (a)(4); see *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355.)

Plaintiff’s request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Plaintiff’s motion for judgment on the pleadings is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 439.) The Court finds that plaintiff fails to show that the complaint states facts sufficient to constitute a cause of action for breach of contract against defendant Roberta Gale. (Code Civ. Proc., § 438, subd. (c)(1)(A) [a judgment on the pleadings may be brought when the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint].)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.